

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-13

**Access One Transport, Inc.,
v.
COSCO Shipping Lines Co., Ltd.**

**RESPONDENT’S NOTICE OF POSITION REGARDING
COMPLAINANT’S OPPOSITION EXCEEDING THE PRESCRIBED LENGTH**

Respondent COSCO Shipping Lines Co., Ltd. (“Respondent” or “COSCO”) hereby files this Notice of Position regarding the Opposition to Respondent’s Motion to Strike or For Leave to File a Surreply filed by Complainant Access One Transport, Inc. (“Complainant or “AOT”) on February 4, 2025. Respondent notes that Complainant’s Opposition to Respondent’s Motion is thirteen pages (excluding certificate of service), which is three full pages over the ten-page length permitted for non-dispositive motions by 46 C.F.R. § 502.71(d). Furthermore, as with the submission of unauthorized filings in connection with its Reply Brief, Complainant did not file a motion to exceed the page limit in this February 4 filing.

Although we can neither condone nor consent to this flouting of the Commission’s Rules, Respondent does not object if the Presiding Officer decides not to strike the unauthorized extra pages.

Dated: February 6, 2025

Respectfully submitted,



Eric C. Jeffrey
Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb

JEFFREY FENNEMAN LAW
+ STRATEGY, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005

Counsel for Respondent COSCO

CERTIFICATE OF SERVICE

I hereby certify that on this 6th day of February, 2025, a true and correct copy of the foregoing **Respondent's Notice of Position on Complainant's Opposition to Respondent's Motion to Strike or For Leave to File a Surreply** was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

Stephen M. Uthoff, Esq.
The Uthoff Law Corporation
111 W. Ocean Blvd., Suite 400
Long Beach, California 90802
t. 562-437-4301
f. 562-437-4341
email; suthoff@uthofflaw.com
Attorney for Complainant
Access One Transport, Inc.



Kaya C. Massey
KMassey@JeffreyFenneman.com
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005